

## Opinion of the Court

come.” *Id.*, at 186–187, ¶10(c). Fourth, Trump and his co-conspirators attempted to persuade “the Vice President to use his ceremonial role at the January 6 certification proceeding to fraudulently alter the election results.” *Id.*, at 187, ¶10(d). And when that failed, on the morning of January 6, they “repeated knowingly false claims of election fraud to gathered supporters, falsely told them that the Vice President had the authority to and might alter the election results, and directed them to the Capitol to obstruct the certification proceeding.” *Ibid.* Fifth, when “a large and angry crowd . . . violently attacked the Capitol and halted the proceeding,” Trump and his co-conspirators “exploited the disruption by redoubling efforts to levy false claims of election fraud and convince Members of Congress to further delay the certification.” *Id.*, at 187–188, ¶10(e).

Based on this alleged conduct, the indictment charged Trump with (1) conspiracy to defraud the United States in violation of 18 U.S.C. § 371, (2) conspiracy to obstruct an official proceeding in violation of § 1512(k), (3) obstruction of and attempt to obstruct an official proceeding in violation of § 1512(c)(2), § 2, and (4) conspiracy against rights in violation of § 241.<sup>1</sup>

Trump moved to dismiss the indictment based on Presidential immunity. In his view, the conduct alleged in the indictment, properly characterized, was that while he was President he (1) “made public statements about the administration of the federal election”; (2) communicated with senior Justice Department officials “about investigating election

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<sup>1</sup>Trump contends that the indictment stretches Section 1512(c)(2) “far beyond its natural meaning.” Brief for Petitioner 39, n. 4. As we explained in *Fischer v. United States*, Section 1512(c)(2) covers acts that impair “the availability or integrity for use in an official proceeding of records, documents, objects, or . . . other things used in the proceeding.” 603 U.S. 480, 498 (2024). If necessary, the District Court should determine in the first instance whether the Section 1512(c)(2) charges may proceed in light of our decision in *Fischer*.